

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1194

Introduced by Storer, 43; Andersen, 49; Bosn, 25; DeKay, 40; Ibach, 44;
Kauth, 31; Meyer, F., 41; Strommen, 47.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to public health and welfare; to adopt the
- 2 Real Food Act; and to provide an operative date.
- 3 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Sections 1 to 5 of this act shall be known and may be
2 cited as the Real Food Act.

3 **Sec. 2.** (1) The Legislature finds that: (a) A significant portion
4 of the population suffers from chronic diseases linked to poor dietary
5 habits; and (b) a concerted effort to prioritize nutrient-dense whole
6 foods can dramatically improve the health trajectory of the state.

7 (2) It is the intent of the Legislature to: (a) Formally adopt
8 state-level dietary guidelines based on current nutritional science; (b)
9 promote educational initiatives to support individuals and families in
10 adopting healthier dietary practices; and (c) enhance food security and
11 support state and local agriculture.

12 **Sec. 3.** For purposes of the Real Food Act, dietary guidelines means
13 a whole food framework customized to individuals and families, taking
14 into consideration an individual's or family's needs, preferences, and
15 financial status.

16 **Sec. 4.** The state's dietary guidelines for public health promotion
17 are:

18 (1) High-quality, nutrient-dense protein foods shall be prioritized
19 in every meal. This includes a variety of animal sources, including red
20 meat, eggs, poultry, seafood, and plant-sourced protein foods, including
21 beans, peas, lentils, legumes, nuts, seeds, and soy;

22 (2) The bulk of fat consumption shall be encouraged from whole food
23 sources, including meats, poultry, eggs, omega 3-rich seafood, nuts,
24 seeds, full-fat dairy products, olives, and avocados. Nutrient-dense
25 natural options with essential fatty acids shall be recommended for
26 cooking;

27 (3) Eating a variety of colorful, nutrient-dense vegetables and
28 fruits as foundational components of daily meals shall be encouraged.
29 Whole vegetables and fruits in their original form shall be prioritized,
30 including appropriate washing prior to consumption when eaten raw or
31 before cooking. Frozen, dried, or canned vegetables and fruits with no,

1 or limited, added sugars may also be encouraged as nutritious and
2 accessible options. Consumption of a broad range of vegetable types and
3 fruit varieties shall be promoted to support overall nutrient intake;

4 (4) Consumption of dairy foods shall be encouraged as an important
5 component of a nutrient-dense diet. When consuming dairy, individuals
6 shall be directed to include full-fat dairy products with no added
7 sugars. Dairy is recognized as an excellent source of protein, healthy
8 fats, vitamins, and minerals. Recommended options include milk, cheese,
9 yogurt, and other dairy products in forms consistent with individual
10 dietary needs and preferences; and

11 (5) Fiber-rich whole grains shall be prioritized to significantly
12 reduce the consumption of refined carbohydrates.

13 **Sec. 5.** (1) The Department of Health and Human Services, the
14 Department of Agriculture, and the State Department of Education may
15 develop and implement a statewide public awareness campaign to educate
16 residents on the importance of adhering to the dietary guidelines
17 described in section 4 of this act.

18 (2) All state agencies involved in public nutrition, school lunch
19 programs, and health care services shall update educational materials to
20 align with the dietary guidelines described in section 4 of this act
21 including identification of foods commonly produced in Nebraska. Updates
22 to educational materials shall be implemented during the next scheduled
23 revision cycle.

24 (3) All state agencies involved in public nutrition, school lunch
25 programs, and health care services may establish partnerships with local
26 governments, health care providers, educators, and community leaders to
27 promote adherence to the dietary guidelines described in section 4 of
28 this act.

29 **Sec. 6.** This act becomes operative on January 1, 2027.